

OPEN LETTER TO THE SITE SELECTION COMMITTEE

STATUS: DRAFT FOR PUBLIC REVIEW — pending formal submission

DATE: June 2026

TO: Chairman Jeff Baines and Members of the City of Lebanon Wastewater Treatment Plant Site Selection Committee

CC: Mayor Rick Bell, Lebanon City Council; Mayor Randall Hutto, Wilson County

RE: Proportionality, accountability, and the obligation to do the right thing

FROM: Todd Roark, Tich Chaikumnerd, and the residents and property owners endorsing the Public Record Statement of May 27, 2026 and its subsequent revisions

Chairman Baines and Members of the Committee:

This letter respectfully addresses considerations that lie outside the technical analysis the petitioners have presented in the formal Public Record Statement. The matters discussed below are not engineering questions, scoring methodology questions, or matrix interpretation questions. They are questions about the ethics and the priorities of the path this committee is presently on. The petitioners file this letter separately from the Public Record Statement because what follows is a matter of conscience that the technical record does not — and should not — carry.

On priorities. We understand the cost pressure driving this committee's stated urgency, but we question the quality of the decision-making those priorities have produced. That pressure is tied to the September 30 TDEC grant submission deadline — reported in the public record to be approximately \$360,000. The same dollar amount approximates the documented equity loss to a *single* high-value homeowner adjacent to the corridor under consideration, calculated using the peer-reviewed distance-decay analysis filed in Appendix B of the Public Record Statement. Sites 1 through 7 contain not one such homeowner, but many. The total residential equity loss in the affected corridor is reasonably estimated in the millions of dollars.

The \$360,000 this committee is working to preserve represents approximately **0.144 percent** of the City of Lebanon's annual budget. The losses the committee is in a position to impose on residents within the corridor will exceed that figure by ten times or more — and unlike the grant funds, those losses will be permanent. Any process which moves quickly to avoid a small administrative loss to a city, while moving deliberately past a large permanent loss to that city's own citizens, has its priorities backwards.

On context. The petitioners do not assume bad faith on the part of any member of this committee. We recognize that no member of this committee would individually choose to harm a neighbor's home, water supply, or livelihood; however, we believe the harm being contemplated is not necessary. The committee's stated process — narrow first, evaluate fully later — risks foreclosing alternatives before they have been seriously examined.

On respect for process. Some on this committee may believe that engaging seriously with public comment is the same as doing what the process requires. It is not. The petitioners' statements have been heard. The alternatives those statements identify, and the assumptions that determine which sites appear viable in the first place, have not been acknowledged, on the record, in any substantive way. Until the committee can show, on the public record, that no site within the City of Lebanon's own boundaries can serve this purpose under reconsidered assumptions, the case for going outside those boundaries has not been made.

On the willing seller. Some on this committee may believe that securing a willing seller, rather than resorting to eminent domain, satisfies the obligation to avoid harm. The standard is higher than that. A willing seller does not, and cannot, consent on behalf of the surrounding homeowners whose property values, well water, and quality of life are affected by the use to which the sold land is put. The seller transfers the deed; the burden of the land's new use falls on neighbors who had no part in the transaction, and who have no comparable financial means of relocating.

On responsibility and authority. At the May 27, 2026 meeting, a member of this committee noted that this committee does not hold final authority on site selection — that authority rests with the City Council. We acknowledge the legal accuracy of that statement; however, the committee's recommendation will substantially shape what the Council can practically consider. Although separation of responsibility from authority is sometimes a necessary structural feature of public decision-making, it must not be used, in defense of difficult choices, as a shield against the obligation to make those choices well.

On the standard. Cost pressure and limited options have been used to justify many things that were neither inevitable nor right. This committee has both the opportunity and the obligation to choose the right path over the harmful one. Doing the right thing in this case is neither free nor easy. We do not ask that it be either.

If the wellbeing of this community's residents commanded the same urgency that 0.144 percent of this year's budget appears to command, the petitioners believe the committee's path forward would look materially different. We respectfully ask the committee to demonstrate, on the public record, that the standard for protecting residents matches the standard for meeting administrative deadlines.

Respectfully,

Todd Roark

Tich Chaikumnerd

on behalf of the residents and property owners of the affected corridor, with approximately 200 endorsing signatories on the public record

This letter is filed separately from, and in addition to, the Public Record Statement (most recent revision dated June 15, 2026, currently in draft for public review). It is intended to enter the public record of the proceedings of the Wastewater Treatment Plant Site Selection Committee and to be made publicly available alongside the Public Record Statement during the community review period.